



Appeal Decision

Site visit made on 28 August 2026

by G Ellis BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6012106

2 Killy Hill, Chobham, GU24 8RF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Joe Verlander against the decision of Surrey Heath Borough Council
 - The application Ref is 26/0127/FFU.
 - The development proposed is the erection of a two-storey side extension and single storey rear extension following partial demolition of existing rear projection.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published. The parts of the Framework relevant to this appeal have not substantively changed. I have therefore not sought further submissions. I have had regard to the latest version of the Framework where relevant in this appeal.
3. The Council changed the description of development from that on the application form. This was agreed with the applicant, and it was confirmed that the porch shown on the plans did not form part of the proposal. This forms the basis of my assessment, and I have therefore used the Council's description in the header.

Background and Main Issues

4. A planning appeal for side and rear extensions following part demolition of the existing dwelling was dismissed in August 2025 – Ref 3365476. The Council, in its officer's report, tabulates the differences in floor area and volume between the two schemes relative to the original building. While there are some small percentage differences overall, the proposals are very similar, and the main parties agree that the proposed development would constitute inappropriate development in the Green Belt.
5. Therefore, the main issues are:
 - The effect of the proposed development on the openness of the Green Belt; and
 - Whether the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

Reasons

Openness

6. The Framework identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open.
7. No.2 is the end property of a short terrace of houses. To the other side is woodland, including a footpath running along the edge of the appeal site. The proposed two-storey extension would reduce the space to the side, extending up to the boundary, and would be visible from both Killy Hill and the footpath. The depth of the proposed single-storey rear element would be less than the existing rear projection, although the Council questions the status of that element, and it would also extend across the rear of the proposed two-storey element
8. Overall, I concur with the assessment of openness in the previous appeal decision that whilst localised, there would be harm to both the spatial and visual aspects. This therefore adds to the Green Belt harm.

Other Considerations

9. The appellant promotes a fallback position comprising a number of alterations through permitted development rights, which is supported by a lawful development certificate¹. These comprise a flat-roof dormer across the full width of the roof, a single-storey side extension which also projects to the rear, a detached garden cabin, and a porch. Together, these aspects would increase the total floor area by approximately an additional 8 sqm compared to the proposal. While the Council agrees with the floor area figures set out by the appellant, it calculates that the volume increase would be lower based on the area of the dormer.
10. Notwithstanding the technicalities of any measurements, these elements would individually and together result in a different composition and form of development compared to the appeal proposal. The side extension would not extend as close to the side boundary, but would be deeper, and with the outbuilding, the built form would be spread further across the plot. However, as single-storey features, they would have reduced visual presence and would be primarily screened by the boundary treatments. The dormer window, owing to its elevated placement, would serve as a conspicuous feature, although, being situated at the rear, it would remain unseen from the road and would not impact the overall footprint.
11. The proposal would result in a more coherent and integrated form, and features such as the large flat roof dormer would be less sympathetic to the appearance of the property and the terrace as a whole. However, design is not a direct consideration in relation to the permitted development right schemes, and nor is it in relation to Green Belt considerations.
12. I accept that the fallback is more than a theoretical prospect and provides a realistic means of achieving additional space if the appeal is dismissed. If implemented instead of the appeal proposal, it would produce a different form of development with some greater impacts. However, the dormer and outbuilding are independent elements that could also be implemented alongside the appeal proposal.

¹ Council reference 25/1208/CES

13. Although there is no indication that the appellant intends to pursue this course, there is no effective mechanism to prevent it. As the Council notes, a condition removing permitted development rights would take effect only upon implementation of the appeal scheme, leaving scope for elements of the fallback, and/or other permitted extensions and alterations, to be undertaken beforehand. In that event, the comparative benefit relied upon would not arise, and the combined development would cause greater spatial and visual harm to openness.
14. The fallback therefore does not provide a reliable improvement over the appeal proposal and attracts only moderate weight in its favour.
15. In consideration of the fallback, I have had regard to the established caselaw² and the two appeal decisions referenced by the appellant. The Hazels case³ relates to a replacement dwelling, and in Chedley⁴ both the proposal and fallback were a single-storey rear extension. As such, I do not find that these are directly comparable to this proposal. Moreover, while accepting that a fallback can be a material consideration capable of providing or contributing to very special circumstances, each case must be considered on its own merits.
16. The appellant explains the need for additional space, and the proposal would increase the size of the property, providing enhanced living conditions for the occupiers.
17. The Council raise no other concerns in relation to the proposal, and I have no reason to disagree. However, compliance with other policies is a neutral factor.

Planning Balance and Conclusion

18. The proposal would be inappropriate development within the Green Belt. The harm to openness would not be significant and localised, but nonetheless, in accordance with the Framework, substantial weight should be given to any harm to the Green Belt.
19. The fallback attracts moderate weight, but its benefits are reduced by the potential for elements of both schemes to be implemented. Even when the fallback and the other identified benefits are taken together, they do not clearly outweigh the harm arising from inappropriate development and the additional harm to openness.
20. Consequently, the very special circumstances necessary to justify the proposal do not exist. The proposal therefore fails to accord with the Framework, and no other material considerations indicate that the appeal should be determined otherwise.
21. For these reasons, the appeal is dismissed.

G Ellis

INSPECTOR

² Mansell v Tonbridge and Malling Borough Council [2017] EWCA Civ 1314,

³ APP/A3655/W/21/3279153

⁴ APP/N0410/D/24/3349362